

ROYA
PUBLICATION
No. 86

THE TIME ALLOWED

مهلت

C H E W Z

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CHEW Z

Printed in the Reach

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This is a work of fiction. Names, characters, places and incidents are either the product of the author's imagination or are used fictitiously. Any resemblance to actual persons, living or dead, events or locales is entirely coincidental.

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FOR THE ONES WHO ARE STILL COUNTING.

SYNOPSIS

Mahmud Bahrami is sixty-eight and has been a judge for thirty-one years. He came in through the seminary in 1371, at a time when the courts were short and a seminary training was training enough. He is exact, unhurried and courteous. He reads every file twice. He is slower than the branch across the corridor and has been for twenty years, and nobody upstairs has ever remarked on it.

Mahin Farahani is fifty-four and did not finish school. She has spent her whole life on the near side of the counter, being told. At ten past four on a morning in Azar 1401 four men come for her son. They are not rough. What they leave her is a third of a page, stamped, signed with a mark that is not a name, listing the items removed. Where he has gone is not on it. Neither is who took him.

It takes her nine days to learn that the name a woman gave her in a corridor was the wrong name, and twelve to find the right window. Nobody in that building lies to her. Every office is master of its own small piece and blind to the rest, and what a mother learns she learns standing in a corridor from another mother who learned it the same way. The wrong version always reaches her first, because it is simpler, and because it gives her somewhere to be in the morning.

The two of them are never in a room together. They pass once, in a corridor, on the twenty-second day.

The Time Allowed is told in forty-nine entries and two clocks that never touch. His are headed by the order he wrote that day and the number of the file. Hers are headed by the day, counted from the arrest, and by what she was told at a window. The law gives twenty days to object to a judgment, and the word for that period is *mohlat*, which is also the word for a reprieve, and only one of them will ever notice.

He has spent thirty-one years being the merciful one, and he can name the men who are alive because of it. In the week he clears his room he finds one sheet of paper in the bottom of the third box.

A NOTE FROM THE AUTHOR

This is the longest note this imprint has printed, and it is here so that the book in front of it does not have to carry any of it.

How the courts in this book actually work. People outside that country generally assume one of two things: that it is religious rule with the trappings of law, or that it is ordinary law bent by politics. It is neither, and the arrangement is more interesting and much harder to argue with than either.

It is a codified system. There is a penal code with numbered articles, a code of criminal procedure, courts of first instance and appeal, and a Supreme Court that must confirm a death sentence before it can be carried out. There are statutory periods and they are kept. Nothing in this novella is lawless, and a book about arbitrary cruelty would have been an easier book to write and a far less frightening one.

The code sorts every punishment into four kinds. Article 15 defines a *hadd* [HAD] as a punishment whose grounds, type, amount and conditions of execution are “specified in holy Shari’a”. Article 16 defines *qisas* [ghe-SAAS], retribution for intentional bodily crimes. Article 17 defines *diya* [dee-YEH], a monetary amount “under holy Shari’a which is determined by law”. Article 18 defines *ta’zir* [taa-ZEER] as what does not fall under the other three and is determined by law. Three of the four are described by the legislature as coming from somewhere the legislature did not make. In those categories parliament is transcribing rather than legislating.

And then Article 167 of the Constitution, which is the whole of it: a judge must decide on the basis of codified law, and where the codified law is silent, deficient, brief or contradictory, he must give judgment on the basis of authoritative Islamic sources and authentic *fatwa* [fat-VAA]. The silences in the statute are therefore not gaps. They are instructions to look somewhere else, and what is found there is not reviewable in the way a reading of a statute is reviewable.

So the man in this book is not a cleric improvising and he is not a clerk applying a rulebook. He applies the law exactly, and the law tells him that where it runs out, God does not. That is why he does not experience discretion as discretion. He is not deciding; he is finding. It is also why he can be, quite genuinely, the most scrupulous man in his building.

The doubt. The maxim is *adra'ū al-ḥudūd bi'l-shubuhāt* [ad-ra-OO al-hoo-DOOD bil-shoo-boo-HAAT] — repel the fixed punishments with doubts. It is roughly a thousand years older than the state that now applies it, and it is not something a judge smuggles in from outside the code. It is inside the code, at Articles 120 and 121: where the occurrence of the offence or a condition of criminal responsibility is in doubt and there is nothing that settles it the other way, the offence is not proven. The legislature wrote the brake into the same document that carries the sentence and put it in his hand. What he does with it in Part III is lawful, ordinary and taught.

The lawyer, and this is the part I would ask a reader to sit with. Under the Note to Article 48 of the Code of Criminal Procedure, a person accused of an offence against internal or external security must, during the investigation, choose counsel from a list approved by the Head of the Judiciary. Lists reached judicial offices in Dey 1396 (January 2018). In one province, of more than three thousand lawyers, thirty-two were on the list. Access to any lawyer at all may lawfully be delayed by up to a week.

The statutory period to object to a judgment is twenty days. It is documented practice that the appointed lawyer lodges the appeal on the first or second day rather than at the end of that period, and that the review is then concluded with speed.

Nothing there is a denial of counsel. Nothing there is a denial of appeal. The right is not withheld; it is spent, early, by the person appointed to protect it, and every step of it is timely, correct and unappealable. Nobody in this book has to be cruel. Somebody has to be prompt.

What is not in this book, and why. The charge is never named. Not by either narrator, not once. That is what actually happens to

families — the offence reaches them as a word in a corridor that they are not sure they heard correctly, and asking again costs a place in a queue. It is also a decision about who this book is allowed to be about. A named charge in Azar 1401 would put a real person, alive and currently inside that shape, on the page for the length of a novella. He is not on the page. Nobody who appears in these entries is drawn from any living person, and no matter described here is any particular matter.

No total of that kind appears anywhere in the entries. Numbers are published for that country every year, by bodies that disagree with one another for good reasons, and this book endorses none of them. No number in this book is a claim about that country. They are the reference on a file, one judge's own tally, and a mother's days.

What could not be verified, stated plainly. The article numbers and the quoted definitions above were checked against published translations and against Persian legal sources. The article said to govern the knowledge of the judge — the certainty on which a finding may rest — is reported as Article 211, and I could not obtain its text, so it is not quoted here or used in the book. The articles defining the security offences are likewise reported and not quoted, which costs the book nothing, since it never names one.

Everything else is invention: the branch, the building, the clerk and his filing system, the lift, the judge, his wife, his son, his friend across the corridor, the advocate, the mother, her son, the woman on the bench on Sundays, and every word said in that court.

The judge is not a portrait. Judges who have done this work are named, sanctioned and documented elsewhere by people whose job that is, and this is not that, and a novella that pretended to be that would be doing something dishonest with a real man's face.

No person in this book is a real person.

I have tried to write a man who cannot be dismissed, because the ones who can be dismissed are not the problem.

Chew Z

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I. THE BRANCH

1.

BRANCH 26 · FILE 1401/0477 · 16 AZAR 1401

Investigation incomplete. Returned to the investigator. Fourteen days.

That is the first thing I wrote on it, and it is the ordinary thing to write.

A *parvande* [par-van-DEH] — a file, a case, the whole of a matter bound in a card jacket with cotton tape — arrives on this desk from the investigator's office when the investigator has finished with it, and about one in four of them is not finished. There is a paper missing, or a date that cannot be right, or a statement signed by a man whose name appears nowhere else in it. In that event it goes back. There is a form of words for it and I have written that form of words, I would think, four thousand times.

I did not read the file that morning. I want to be exact, because a man in my position is owed exactness by himself if by nobody else. I read the schedule of contents, which is what one reads first, and the schedule showed a gap, and a gap is not a matter of judgment.

So: returned. Fourteen days.

I have been in this room for nineteen years and in this building for thirty-one. My chair is not comfortable and was not comfortable in 1383 when I asked for another one and was told that the allocation was annual.

Outside, the corridor. It is always the corridor.

2.

DAY 1 · 04:10

Open the door.

They came at ten past four and they were not rough.

I want that written down because of what people say. Four men. Two came in and two stayed on the landing where Mrs Aghdasi could see them and she has told everybody in the building since, and she has told it correctly, which is rare.

They asked for Kamran by his full name and his father's name. He came out of his room in the tracksuit he sleeps in. He said, all right. He said it twice. The second time he said it to me.

They took the tower of the computer and his telephone and a notebook with nothing in it but numbers for work, and they took my telephone as well, and the one in the kitchen that has not been connected since we moved. A young one of them looked at that phone for a while before he took it.

They gave me a paper. It is one third of a page and it has a stamp on it and a signature that is a shape rather than a name. It says that certain items have been removed. It does not say where he was taken, or by whom, or under what.

I asked where. The one at the door said, they will call you.

It was ten past four when they knocked. It was twenty to five when the door shut. I know because I looked at the clock on the oven, and I have looked at a clock on purpose every day since, and that is how all of this is measured now.

3.

BRANCH 26 · NINE FILES · 16 AZAR 1401

Objection out of time — refer up. Set down, 4 Dey, 09:20. Complete — to the branch.

Nine files before lunch, which is average, and none of them was interesting.

A man reading this from somewhere else will want the work to be dramatic and it is not. It is a desk, and a stack, and a clerk who brings the stack in two loads because one load is too heavy, and a rubber stamp, and a pen that is mine and that I have had since Ordibehesht 1379.

What arrives is paper. What leaves is paper with a *dastur* [das-TOOR] on it — an instruction, written by hand in the margin or on the face, dated and initialled. A *qarār* [gha-RAAR] is the other thing that leaves this room: not the judgment but a ruling on the way to one, and a man may be held for a year on a *qarār* and never

have been tried at all. *Return. Refer up. Complete. Set down.* The instruction is not the judgment. The instruction is what has to happen next in order for a judgment to become possible, and the great majority of this work is that and only that.

Thirty-one years. I came in through the seminary in 1371, which people now find remarkable and which was, at the time, unremarkable: they needed judges, there were not enough, and they took the men who had the training. I had the training. My father was a shopkeeper and had wanted something else for me and did not get it.

I have never been anywhere else. I have never wanted to be. There is a kind of man who says that about his work and is lying to make a point, and I am saying it because it is a fact about me that I have examined and found to be true.

4.

BRANCH 26 · 17 AZAR 1401

No sitting. Files reviewed.

Asghari has been the clerk of this branch for thirty years, which is one year less than I have been in the building and a good deal longer than I have been in this room.

His filing system is perfect and nobody else can operate it. Twice a year a young man from upstairs proposes computerising it and Asghari agrees, warmly, at length, with several suggestions, and nothing happens. I have watched him do this four times. He does not obstruct. He assists, and the assistance is fatal, and I have never once seen him take pleasure in it.

The tea comes at half past nine and at half past three. It is poured in an order. The order is not written anywhere, it has never been discussed, and any person who has worked in this building for one month could recite it, and no person who has worked here for less than a month can see it at all. When a new judge arrives he is given his tea in the wrong position for about three weeks. Nobody corrects him. He corrects himself, or he does not, and if he does not it tells you something.

The lift has been out since 1387. There is a notice about the lift. The notice has been up longer than two of the typists have.

I say all this because a man who reads about a court expects a room with a raised bench in it. That room exists and I am in it perhaps six hours a week. *The rest of it is a building.*

5.

DAY 2 · 09:00

This is not the office for that.

There is a place you go and I did not know where it was.

I went first to the prosecutor's office in the district because that is where a woman on the stairs told me to go, and I stood in the wrong queue for two hours before a man told me, kindly, that this was not the office for that. He did not say which office was. I do not think he knew. I think he knew that it was not his.

Then a taxi to the other building, the big one, and there is a window, and at the window a young man asked me for the case number.

I said I did not have a case number. I said his name and his father's name and the date.

He said, without a case number I cannot look. Not unkindly. He said it the way you would say a door was locked.

I asked how a person gets a case number. He said it is on the paper.

I said, this is the paper, and I gave him the third of a page with the stamp, and he turned it over, and he gave it back, and he said, that is a receipt for property. There is no case number on a receipt for property.

There was a woman behind me who had been there before. When I came away from the window she took my arm and told me to come back on Sunday and ask for a man whose name she gave me, and to say I was sent by a person whose name she also gave me, and I wrote both of them on the back of the receipt for property.

The first name was wrong. I did not find that out for nine days.

6.

BRANCH 26 · FILE 1401/0512 · 20 AZAR 1401

The finding is sound. The reasoning is not. Redraft and return to me.

Ghaffari has the branch across the corridor and we have been across a corridor from one another for twenty years.

He came in from the law faculty under the 1365 provision, which took prosecutors of three years' standing and made them judges, and I came in from the seminary in 1371, and between us there is a disagreement which has never once been about a case.

It is this. Ghaffari believes that the code is the building and the sources are the foundation — that one lives in the code, that a man may spend an entire career inside it, and that where the code is thin the correct response is to press the legislature for a better code. I believe the code is the floor and the sources are the building. Where the code is silent, something is still true; the silence is not an absence, it is a place where I am required to look somewhere else, and I am told where to look, and it is not my opinion that I find there.

We have had this disagreement in the corridor, at three funerals, and once at some length in a car on the Qazvin road.

He is a better lawyer than I am. I say that plainly. He can find a thing in the code that I would have to be shown. And I have never in twenty years heard him say what he would do if the code did not contain it, because to him that is a question about a fault in the drafting, and to me it is the only interesting question there is.

He is my closest friend. We do not use the word. We are not that generation.

7.

DAY 5 • 07:40

Bring the deed of your house.

The name the woman gave me was a real name of a real man who does exist, and he is in a different section, and he has nothing to do with any of it.

He was patient with me. He listened for a while and then he said, sister, this is bail. You are talking about bail. Somebody has told you about bail.

I said I did not know what I was talking about.

He said, are they asking you for a *vasigheh* [vaa-see-GHEH] — a surety, a paper or a deed put up so a man can wait outside? And I said nobody has asked me for anything, and he said, then this is not that, and he said it in a way that made me understand that not being asked was worse.

I brought the deed of the house anyway. It was in the cupboard in the hall in a plastic folder with the marriage papers. I took it out on the Wednesday night and I sat with it on the table for a long time, and I thought that whatever they wanted I would give them, and I understood that night for the first time that nobody wanted anything.

That is the thing I could not explain afterwards to my sister-in-law, who kept saying, but what do they *want*, and I could not make her understand that this is a question with no one to ask it of.

8.

BRANCH 26 • FILE 1401/0477 • 30 AZAR 1401

Returned complete. Retained.

The file came back within the fourteen days, which is not always the case, and the gap in the schedule had been filled.

I read it that afternoon.

I am not going to describe what is in it. This is not squeamishness and it is not an evasion. It is the position I have held for thirty-one

years and I hold it in this account as I hold it in the room: *what is in a file is in the file*. A judge who discusses the contents of a matter outside the matter is doing something other than judging, and I have watched two men be moved out of this building for it and I did not disagree with either decision.

What I will say is that it was a security file, in the category that comes to this branch, and that it was not thin, and that I read it twice.

The accused is twenty-three. There is a photograph in a *shenāsnāmeḥ* [she-naas-NAA-meh], a birth certificate, which is the document that establishes who a person is in that country and which is asked for at every door, and in the photograph he is about fifteen and his hair is combed flat with water.

I retained it. That is the ordinary course.

9.

DAY 11 • 11:00

You were told wrong.

Nine days I had that name in my hand and I went twice to a section that had nothing to do with it, and on the second visit a woman at a desk said, quite gently, you were told wrong.

I want to say something about that, because afterwards people asked me why I did not just ask somebody who knew.

There is nobody who knows. That is not a complaint and I am not being bitter. There is no office called the office where they tell you. There are offices, and each of them knows its own part, and none of them knows the shape of the whole thing, and the only people who know the shape of the whole thing are the women in the corridors, and they know it wrongly, because they learned it from other women in corridors, and the wrong version travels faster than the right one because it is simpler and because it gives you something to do tomorrow.

I lost nine days.

I have thought since about what nine days were worth in that period and the answer, I know now, is nothing at all. Nothing was happening in those nine days that I could have touched. But I did not know that then, and I ran, and I have never got the running out of my legs since.

That woman at the desk wrote the right section on a piece of paper and drew an arrow. I still have it.

10.

BRANCH 26 • 3 DEY 1401

No sitting. Files reviewed.

My wife died four years ago in Aban and I have not moved anything in the house.

She asked me a question once, in the last year, and I could not answer it. She asked me what I would like to do when I stopped. Not what I would do. What I would *like* to do.

I opened my mouth to answer her and there was nothing there.

I want to be precise about this because I have had four years to be imprecise about it and I have not permitted myself. It was not that I had no preference. It was that the sentence would not form. To say *I would like* is to say a thing about what has not happened, and I have spent my working life determining what has happened, and somewhere in those years the other faculty went out of me the way a lamp goes out at the back of a house that nobody uses.

She waited. She was good at waiting; she had married a man who was often late.

Then she said, all right, Mahmud, and she got up and cleared the plates, and she never asked me again, and I have thought about that more than I have thought about any file.

I read now for the operative clause. I cannot stop. A letter, a label on a tin, a page of the Book — my eye goes to the part that requires something and the rest is preamble. That is what I have instead of a preference.

11.

BRANCH 26 · FILE 1401/0477 · 5 DEY 1401

Note the accused is without counsel. Refer to the register.

He had no lawyer and that is not unusual at that stage and there is a procedure for it.

In a matter of this category the accused chooses his advocate from a register — a list, approved and maintained, of the advocates who may appear. It is not a long list. In some provinces it is very short indeed. There is a great deal said about this outside the country and some of what is said is accurate.

I will give my view once and then leave it, because my view is worth nothing and I have never expressed it in any room where it could have counted.

The register is not a device for producing bad advocates. It is a device for producing predictable ones. The men on it are competent. Several of them are more competent than the men not on it. What the register does is make it certain that no advocate in this category will do a thing that has not been done before, and the value of that to the people who made the register is not that it wins them anything, because they win anyway. It is that it makes the calendar work.

I wrote the note and I referred it to the register, and that is the whole of what was open to me.

It was not open to me to appoint from outside it. I want to be accurate: I did not want to. There is no version of that afternoon in which I sat here wishing.

12.

DAY 12 · 08:15

Bring the shenāsnāmeḥ. Yours and his.

On the twelfth day I found the right window and it took four minutes.

Everything before it was nine days of the wrong name and two days of queues in the wrong building, and the right window, when I got to it, was a man of about forty with reading glasses pushed up who typed the name and the father's name and read something off a screen and said a number out loud, twice, so I could write it down.

I wrote it on the back of the receipt for property, under the two wrong names.

He said, bring the *shenāsnāmeḥ*. Yours and his.

I said I have brought mine, and he said, and his, and I said his is at home, and he said, then it is at home. Not rudely. He had said it a thousand times.

Then he said the other thing, which is the thing I did not understand for another month. He said: it is with the investigator. When it comes out of the investigator's it will go to a branch. Then you can ask.

I said, ask what?

He said, ask.

I bought a telephone on the way, second-hand, from the shop by the metro, because a person has to be able to be telephoned. I went home with a number in my hand and I was — I am going to write this down because it is true and because nobody believes it afterwards — I was almost happy. I had a number. Twelve days of no number and now a number, and a number is a thing you can say at a window, and I did not understand yet that a number is a thing that lets other people find him and does not let me.

13.

BRANCH 26 · FILE 1401/0477 · 7 DEY 1401

Advocate entered from the register. Proceed.

Torabi. I have seen his name on files since about 1394.

He is a serious man, he is punctual, he does not make speeches, he does not ask for adjournments he does not need, and in every matter of this category in which he has appeared before me the

papers have been in order and filed early. He is, in the specific and narrow sense in which the word is used in this building, *a good advocate*.

There will be people who read that and take it for irony. It is not irony. I have had before me advocates who did not read the file, who arrived on the day, who put a hand on the client's shoulder in the corridor and then said four sentences and sat down. Torabi is not that.

I entered him and I wrote *proceed*.

A woman was in the corridor when I came out at about a quarter to two. She was standing rather than sitting, which is what people do on the first days, before they learn that it is a building where you sit. She did not speak to me and I did not look at her for longer than a person looks.

There is a rule about the corridor which I have never said aloud to anybody and which every judge in this building keeps. *You do not look*. Not because of feeling. Because a face outside a door is not evidence, and a thing that is not evidence must not get into the room, and the only way to be sure it does not get into the room is not to carry it in.

I have kept that rule for thirty-one years and I have never once been in any doubt that it is correct.

II. THE FILE

14.

BRANCH 26 · FILE 1401/0477 · 10 DEY 1401

Two statements are undated. The deficiency is formal. Note and proceed.

There is a distinction which nobody outside this building has ever been able to hold and which everybody inside it holds without effort, and it is the distinction between a deficiency that is formal and a deficiency that is material.

A formal deficiency is a missing date, an initial where a signature is required, a page numbered twice. A material deficiency is a thing that, if it is not supplied, means the matter cannot be determined. The first is corrected. The second is fatal.

Almost everything is formal.

I say *almost* because there is a third case, which is where the formal and the material touch, and it is where the whole of my working life has been spent. A statement that is undated is formally deficient. But a statement that is undated is also a statement about which one cannot say when it was made, and if the question in the matter is *when*, then the missing date is not a clerical matter at all.

In this file the question was not *when*. So: note and proceed.

I have written *note and proceed* on perhaps two thousand files and I have written *the deficiency is material* on, I would estimate, forty. Each of those forty was correct. I could take you to most of them.

15.

DAY 22 · 10:30

He can have a lawyer. It has to be from the list.

By the third week I had understood that there was a list.

I had not understood it from anybody official. I understood it from a woman called Nahid whose husband had been in for three and a half years by then and who sat on the same bench as me on Sundays, and she said, when it comes to a lawyer, it has to be from the list.

I said, which list.

She said, they have a list.

I asked at the window and the man at the window did not contradict her. He said, in this category, yes. He said it the way you would say a bus route.

I want to write down exactly what I thought, because what I thought was wrong and I want the wrongness in here.

I thought: a list is not so bad. A list means somebody has checked them. In my life a list has usually meant a thing had been organised. I thought of the list of approved plumbers the housing office keeps. I thought, at least it will be somebody who knows the way around.

I was in the corridor on the twenty-second day and there was a judge who came out of a door and went past, an older man, and he did not look at me, and I did not know then that not looking is a rule and I thought it was that he had not seen me.

16.

BRANCH 26 · FILE 1401/0477 · 20 DEY 1401

Advocate on record. Papers to advocate.

Torabi came for the papers himself rather than sending a boy, which not all of them do.

He stood in the doorway with his coat over his arm and we spoke for about a minute and a half about a thing that had happened to a mutual acquaintance's roof. Then he took the file to the annexe, where an advocate may read but not remove, and he was there for the whole afternoon, which I know because Asghari mentioned it.

I want to set out plainly what an advocate in this category can and cannot do, because there is a great deal written about it and most of it is written by people who have never watched one work.

He can read the file. He can take a note. He can put a defence in writing and he can speak at the hearing. He can raise a defect and he can appeal.

He cannot bring a witness the investigator has not taken a statement from. He cannot, in practice, obtain an adjournment for the purpose of finding one. He cannot make an application that has never been granted in that category, because the application will not be granted and he will have spent something he needs later.

Every advocate on that register knows the shape of what is possible with great precision, and the shape is small, and they work inside it well. That is the whole of it. *They are not cowards and they are not agents. They are men working a narrow seam accurately.*

17.

DAY 32 · 14:00

Twenty minutes.

The first *molāqāt* [mo-laa-GHAAT] — the visit — was on the thirty-second day and it was through glass and it was twenty minutes.

I had been told twenty minutes and I did not believe it, because I had been told a great many things by then which were not true, and so for the first four minutes I did not say anything of substance to my son, because I was waiting to find out how long I actually had.

It was twenty minutes.

He had lost weight and he had shaved, which I did not expect, and he said the food was all right. He asked about his aunt's leg. I had forgotten there was anything wrong with his aunt's leg.

I asked him what they were saying he had done.

He looked at me. He started to say something and then he looked at a place behind me and to the left, and he said, they will tell you.

There was a telephone handset on each side and a woman two places down who was crying without any noise at all, which is a thing I did not know a person could do until that day and which I can do now.

At eighteen minutes I said the things I had written on my hand in the taxi. Money in his account. His aunt. Do not sign anything

without reading it. That last one he had already heard from somebody else and it was too late to be useful.

Twenty minutes is one thousand two hundred seconds. I have done that sum since.

18.

BRANCH 26 · FILE 1401/0477 · 2 BAHMAN 1401

Set down. 23 Bahman. 10:00.

Setting down is a matter of arithmetic and Asghari does it.

There is a calendar and there is a list of matters ready and there is the fact that the room is used by three branches on rotation, and out of those three things comes a date. I have never in nineteen years chosen a date for a reason of my own. I have twice asked for a matter to be moved because I had read the file and wanted longer with it, and both times it was moved, and both times it cost the calendar something that somebody else paid.

Ghaffari's branch works faster than mine. This is a fact and it has been a fact for twenty years and it is not a criticism of him.

He says — he has said it to me perhaps ten times, and always at the point in an evening where a man says the true thing — he says: Mahmud, you read for a defect. I read for a decision. He says: you go through a file looking for the thing that will let you send it back, and I go through a file looking for the thing that will let me finish it, and we both find what we are looking for, and mine go out in a third of the time.

He is right about both of us.

He does not say the other half, which is that his are upheld and mine are upheld and nobody upstairs has ever remarked on the difference.

19.

DAY 40 • 09:00

Do not worry. It is a straightforward file.

I met Mr Torabi on the fortieth day in an office with two chairs in it and he gave me nine minutes, and I have never held it against him, because I have learned since how many files he had.

He was courteous. He stood up when I came in. He asked after my health before anything else and he meant it in the way that people mean it, which is not much and is not nothing.

He said the file was straightforward. He said, do not worry. He said there was no forensic difficulty in it.

I asked him what Kamran was charged with.

He gave me a word. I am not going to write the word down, because I did not hear it properly and I have never since been able to be certain that the word I think I heard is the word he said, and I have watched what happens to a woman in that building who says a thing she is not certain of. It was a short word. It was the kind of word that has a whole paragraph folded up inside it.

I said, what does that mean.

He said, it means the file goes to that branch.

Then he looked at his watch, not rudely, and said the thing I have thought about since more than anything else anybody said to me in fourteen months. He said: *the important thing is that we are inside all the times.*

I said, times?

He said, the times. Everything has a time. As long as we are inside them, we are all right.

20.

BRANCH 26 · FILE 1401/0477 · 23 BAHMAN 1401

Heard. Reserved.

The matter was listed at ten, was reached at seven minutes past, and I rose at fourteen minutes past.

I am not going to give an account of what was said in that room. It is in the record, the record is where such things belong, and a judge who narrates his own hearing has begun to perform it.

What I will say is this, and it is the only thing about that morning that I have ever wanted to say to anybody.

Nothing was rushed. That is the accusation, always, from outside — that these matters are done at speed. And it is true that the hearing took seven minutes, and it is true that seven minutes is not long, and it is not true that anything in it was hurried.

It took seven minutes because there was nothing in it that took longer. The statements were in the file. The advocate had read them and had put his defence in writing, correctly, in advance, as a competent advocate does, and I had read that too. Nobody in that room had anything to say that was not already on paper, and to have said it aloud again for the sake of the clock would have been theatre.

I have sat for four hours on a matter about a wall.

Reserved. That means I had not finished, and it means I took it home.

21.

DAY 68 · 10:07

You cannot go in. It is not open.

It took seven minutes and I was not in the room.

I was told at the door that it was not open. I said I am his mother and the man said, it is not open, sister, and he was not unpleasant about it, and he stood in front of the door in the way a man stands when he is going to keep standing there.

So I know the seven minutes from the corridor.

Here is what I have. The door opened at seven minutes past. Four people went in and one of them was Mr Torabi, who nodded to me. The door shut. I could hear a voice but not words. There was a moment where the voice stopped for longer than a sentence, and I have thought about that gap more than I have thought about the rest of it, and I do not know what it was and I never will.

At fourteen minutes past the door opened again and they came out, and Mr Torabi came over and said, that went as expected.

I said, was he all right.

He said, he was very calm.

I said, did he say anything, and Mr Torabi said, there was no need for him to say anything, and he said it as a reassurance, and I understood — not that day, later — that it was one.

I stood in the corridor afterwards for a while because I did not know that the thing had happened. I thought it was a stage. I was waiting for the part where somebody explains, and nobody came, and after a while a woman with a mop needed me to move.

22.

BRANCH 26 · FILE 1401/0477 · 25 BAHMAN 1401

Judgment issued. Copy to the parties. Enforcement stayed pending review.

It was issued on the twenty-fifth and it is fourteen pages and I wrote every line of it myself, which not everybody does.

A judgment in this country is written in a particular way and the way is not accidental. It recites what was alleged. It recites what was found. It gives the article. It gives the finding. It is written throughout in a voice that has no person in it — *it is established, it is found, the court considers* — and there is not one *I* anywhere in fourteen pages.

I have written, at a rough estimate, fourteen thousand judgments and orders in this building, and I do not believe the word *I* appears in any of them.

That is not modesty. I want to be very careful here because modesty is what it looks like and modesty is a virtue and I am not claiming a virtue. *It is accuracy.* The finding is not mine. It is the finding that the material compels. If another man of ordinary competence sat where I sit and read what I read, he would arrive where I arrived, and if he would not, then one of us has made an error and the error can be identified and named. That is what it is to have law rather than men.

The judgment went out on the twenty-fifth. Enforcement is stayed until the review, which is automatic in this category and is not a favour.

I went home and there was some rice from the Thursday.

23.

DAY 72 · 16:00

It is a death sentence. There are twenty days.

Mr Torabi telephoned me at four in the afternoon on the seventy-second day and told me in two sentences and the second sentence was the one about the twenty days.

I will put down what I did, in order, because I have been asked and because I do not want it to sound like anything it was not.

I said, thank you for telling me. I said that. I have gone over it and I said thank you.

I put the telephone on the table. I went into the kitchen and I filled the kettle and I did not switch it on. I stood there for I do not know how long. Then I went and got the plastic folder out of the hall cupboard, the one with the deed of the house in it, and I put it on the table next to the telephone, because in my mind the folder was the thing you produce.

Then I telephoned my sister-in-law, and she began to scream, and I found that I was comforting her, and I did that for about a quarter

of an hour, and then I said I had to go because there were twenty days.

Twenty days is a mohlat [moh-LAT]. That is the word. It is the word in the law for the time you are given to object to a judgment. It is also the word my mother used when she wanted a few minutes more before we left the house, and the word a shopkeeper uses when he lets you pay next week.

I did not think about that then. I have thought about it since, a great deal, and I have decided that it is not a cruelty, because nobody chose the word. It was already the word. *It only means both things if you stand where I was standing.*

24.

BRANCH 26 · FILE 1401/0477 · 27 BAHMAN 1401

Petition for review received. Within time. Transmit.

The petition came in on the twenty-seventh, which is the second day of the twenty, and I wrote *within time* and I transmitted it.

The period is twenty days from service. It exists so that a person against whom a judgment has been given can put his objection into a form that will be read by a higher court, and it is generous by comparison with some.

I have thought since about that word, *generous*, and I am leaving it there because I wrote it without thinking and the unconsidered word is the true one.

The petition was three pages. It was competently drafted. It raised the two defects that are available to be raised in a matter of that shape and it raised them in the correct order, and it did not raise anything that would have been struck out, and it was, in the assessment of a man who has read some thousands of these, *as good a petition as that file admitted of.*

Within time is the note the branch makes. It is a note about the date and nothing else. It means: the petition was lodged before the period expired and is therefore competent, and the higher court is not entitled to reject it on that ground.

I wrote it on the twenty-seventh and the file went up on the twenty-eighth.

I did not think about the eighteen days that were left in the period, and I want to be exact: it is not that I thought about them and dismissed them. *There was nothing there to think about.* The period is a maximum. A petition lodged on the second day is not lodged early. It is lodged.

25.

DAY 90 · 11:20

It went up on the second day.

I had nineteen days and I used every hour of them and on the ninetieth day I brought the folder to the window and the man looked at the number and said, that has gone up.

I said, gone up.

He said, to the review. It went on the second day.

I want to put down what was in the folder, because it took nineteen days and because I would like it written somewhere.

His school leaving certificate. Two letters from teachers, one of whom I had to find through a cousin because the school had closed. A letter from the man he worked for, on the shop's paper, saying what he was like at work and that he was never late, which the man wrote out three times because he wanted the handwriting to be good. Nine signatures from the building, including Mrs Aghdasi's, saying what they had seen at four in the morning, and one of those nine was from a man who does not like us. The hospital paper from when Kamran was small. His father's death certificate. A photograph of him at the seaside at Anzali because somebody had told me that a photograph is good.

The man at the window was not unkind. He said, sister, the review is on the file. It is on what is in the file.

I said, this is what he is like.

He said, yes. But it is on the file.

I asked him — and this is the only time in fourteen months that I raised my voice in that building, and it was not loud, it was only that my voice came out wrong — I asked him why they had told me twenty days.

He said: they did tell you twenty days. You had twenty days. It went on the second.

26.

BRANCH 26 · FILE 1401/0477 · 20 ESFAND 1401

Review concluded. Judgment affirmed. To enforcement.

It came back down in Esfand and it was affirmed.

The higher court does not sit to try the matter again. It sits to see whether the law was applied, and whether the procedure was kept, and whether the finding was one that the material could bear. It reads the file and the judgment and the petition, and in a matter of this kind it does that comparatively quickly, and I have never heard a judge of this building complain about the speed of it, because a review that took a year would be its own cruelty and everybody knows a family waiting.

Affirmed. To *ejrā* [ej-RAA] — enforcement, the carrying out, the same word for both — which is another office, in another building, and I have never been in it.

There is a thing I did that afternoon which I have not been able to account for and which I am putting down because this record is worth nothing if I only put down the parts that hold together.

I read the petition again. It had come back with the file and there was no reason to read it. I read all three pages of it, at my desk, at about ten to five, with my coat already over the chair, and then I put it back in its place in the file and I did the tape up and I went home.

I did not find anything. There was nothing in it to find. It was a good petition and it was lodged within time.

III. THE REDUCTION

27.

BRANCH 26 · FILE 1402/0031 · 8 FARVARDIN 1402

The condition is not established beyond doubt. The greater charge does not lie. Reduce and re-list.

That is the sentence I have written more often than any other sentence in my life, and I have never once been questioned on it.

Here is the machinery of it, and I am going to set it out plainly because it is the part nobody outside this building has ever understood and because everything I have to say about myself depends on it.

There is a class of offence in which the punishment is not decided by the legislature. The grounds, the kind, the amount and the conditions are all fixed elsewhere, and the code says so in as many words, and what the code contains is a transcription. Those are the fixed ones. Beneath them is a much larger class in which the punishment is the legislature's, and there the range is wide and the discretion is real and everybody knows it is real.

And between the two there is a door.

The door is doubt. If it is doubtful whether the thing occurred, or doubtful whether a condition of responsibility was met, and there is nothing that settles the doubt the other way — *then the greater thing is not established, and what is left is the lesser thing.*

That is not a trick and it is not mine. It is in the code, in two consecutive articles, and it is older than the code by about a thousand years, and it is the first thing a man is taught.

Some judges find a doubt three times in a career. *I have made a study of it.* I know where a doubt will bear weight and where it will fold under, I know which kinds survive a review and which come back down with a paragraph attached, and I have used it more than any man in this building.

It is the only skill I have ever had.

28.

DAY 96 · 09:40

It has been affirmed.

On the ninety-sixth day a man at the window said it had been affirmed and I said what does affirmed mean and he said it means the higher court has looked at it.

I said, and?

He said, and it stands.

I said, how long did they look at it.

He did not answer that, not because he was refusing but because it was not a question that has an answer at a window, and I understood that even while I was asking it. I was asking so that there would be a next thing.

What I have learned since — from Nahid, and from a woman who is a nurse and whose brother is a lawyer, and from a man who sells telephone cards outside the third gate and who knows more about that building than anybody I have met — is that the higher court reads the file and the judgment and the petition, and does not hear anybody, and does not send for anybody, and that this is not a thing that has gone wrong. That is what it is. It is a reading.

So there were three pages that Mr Torabi wrote on the second day, and there was a folder of nineteen days of my life in the hall cupboard, and only one of those two things was ever going to be in the room.

I did not cry that day. I went to the shop and bought rice and lentils and a scouring pad, and I have never been able to work out why I bought the scouring pad.

29.

BRANCH 26 · 17 FARVARDIN 1402

No sitting. Files reviewed.

His name was Naser Ordibehesht — it was not, but that is close enough for a page nobody will read — and in 1379 he was twenty-six years old and he is alive.

The matter came to me on a Thursday. The greater charge was made out on the papers; anybody would have said so; Ghaffari would have said so in fifteen minutes and would have been within his rights.

There was a period of about forty minutes in the statement of the second witness which was not accounted for anywhere in the file. Not contradicted. Not filled by anybody. Simply not accounted for.

That is a doubt. It is a small one. It is the kind that a busy man does not see because he is not looking for it, and it is the kind that folds under if you put too much on it, and what I did with it took me about nine days of reading and two letters and one telephone call, and at the end of it the greater charge did not lie and the lesser one did.

He served seven years. He came out in 1386.

I know he is alive because a cousin of his wrote to the branch in 1394 about a matter of a licence, and the letter mentioned him in passing, in a sentence that had nothing to do with any of this, and I read that sentence four times and then I put the letter in the ordinary post tray.

I have thirty-one of those. I do not mean approximately. I mean that I have thirty-one, and I could give you the year of each, and I have never written the list down anywhere and I never will.

30.

BRANCH 26 · FILE 1402/0044 · 19 FARVARDIN 1402

The parties to attend on 2 Ordibehesht for the purpose of reconciliation. No other business.

And then there is the other kind, which is not law at all.

In a matter of blood the punishment does not belong to the state. It belongs to the family of the person who died, and they may take it or they may release it, and if they release it the man does not die. The court cannot forgive. *I have never in thirty-one years had the power to forgive anybody of anything.* It sits with a family in a house in a street, and my entire function in it is to give them a room and a date and to say nothing that makes it harder.

I have been in perhaps sixty of those rooms.

There is a way to do it. You do not begin with the accused, ever. You begin with the person who died, by name, and you let it be about him for as long as it takes, which is sometimes two hours. You never say the word *forgive* first; you wait for somebody in the room to say it, and somebody almost always does, and if nobody does then it is not going to happen that day and you say so and you set another date. You make sure the mother is not by the door. And you arrange, if you can, that the money is not discussed in the same room on the same afternoon, because the moment the money is on the table everybody in it becomes a different person, including you.

I am good at this. I am better at it than anybody in this building.

And when it works, what has happened is that a family in grief has been persuaded, in a room I arranged, over an afternoon I paced, to give up the one thing the law gave them. I have called that mercy for thirty-one years. It is written in the file as *rezāyat* [re-zaa-YAT], consent, and consent is exactly the right word, and I have never let myself look at it for very long.

31.

DAY 140 · 06:00

He has been transferred. Bring only what is on the list.

They moved him in Ordibehesht to the place outside the city and after that everything took a whole day instead of half of one.

There is a list of what may be brought and the list is not long and it is not unreasonable. Clothing of certain kinds. Certain foods and not others. No paper with writing on it. Money is not handed over; it is paid in at a window and it goes to an account and he draws on it inside, and the prices inside are what they are, and everybody knows what they are, and there is nothing to be done about it.

The first time I went out there I took a bag with things in it that were not on the list because I had not seen the list, and a young officer went through it in front of me on a metal table and took out four things and gave me back the bag, and he was not rough with the things. He set them aside carefully. That was almost the worst part of that day.

What I had not understood is that you produce the *shenāsnāmeḥ* every single time. Not once. Every time. Mine and his. It is not that they do not know me by now; the young ones at that gate know me perfectly well and one of them says good morning. It is that the document is what is looked at, and the person is not.

I have that book in a plastic bag inside my handbag and the plastic bag has worn through twice.

32.

BRANCH 26 · 27 ORDIBEHESHT 1402

No sitting. Files reviewed.

I am going to make the argument now, in full, because I have made it to myself in this room every working day for a very long time and I have never once said it aloud, and it holds.

Consider what would happen if I were not here.

Not if the law were different — that is a conversation for a man with a different life. If tomorrow I did not come in, this branch would go to a man of thirty-eight with a good record who would apply the code correctly and go home at five. He would find the greater charge made out where it is made out on the papers. He would not spend nine days on forty unexplained minutes in a second witness statement, because no one has ever asked him to, and because it is not required, and because it is *not what the job is*. He would be a perfectly good judge and every one of his judgments would be upheld.

And thirty-one men would be dead who are not.

That is the whole of my case and I want it examined rather than admired.

It is not a claim to have been kind. Kindness is not available in this room; the file is what it is and the material is what it is and no amount of feeling will move a fact. It is a claim about attention. *I have paid, every day, an amount of attention that nobody required of me*, and attention is the only thing in this entire building that is not allocated from above, and out of that attention has come a doubt, and out of the doubt a lesser finding, and out of the lesser finding a man who came out in 1386 and whose cousin wrote to us about a licence.

Ghaffari has said to me: you are describing a hobby.

He is wrong and I have never been able to show him why in a way he accepts. He thinks the difference between us is temperament. It is not temperament. *A doubt is either there or it is not there, and a man who does not look does not find one that is there, and the one who is not found for goes to enforcement*. That is not a matter of style. It is the difference between two things that are actually different.

I have been the most useful man in this building for thirty-one years and nobody has ever thanked me for it, and I have never needed thanking, and if I had needed it I would have had to explain what it was for.

33.

BRANCH 26 · 3 KHORDAD 1402

No sitting. Files reviewed.

They wait outside the door and they know which door.

I have never asked how they know and I do not need to; it is the corridors, it is the women, it is the same channel by which the wrong information travels and occasionally the right. But they know, and they have known for perhaps twenty years, and the queue outside my door on a Sunday is longer than the queue outside Ghaffari's and neither of us has ever mentioned it.

They are not there to plead. Very few of them ever ask me for anything at all — they know better, and they know it would end whatever it is they are doing. They are there so that I will have seen them.

And they are right. That is the part I want to be exact about. They are not superstitious and they are not wasting their mornings. A judge who has seen a mother in a corridor is a judge in whom, for the next hour, the appetite for looking harder is very slightly raised. Not the outcome. The *appetite*. And the appetite is the whole thing, because attention is what finds the doubt, and the doubt is what changes the finding.

So they stand there, and the ones who have been coming longest have worked out that Sunday is better than Wednesday and that half past eight is better than midday, and they are correct about both, and no one has ever told them.

I keep the rule. I do not look.

I have kept it thirty-one years and I would keep it tomorrow, and I have known for at least fifteen of those years that keeping it is not what I tell myself it is. *It is not that the face would corrupt the finding.* It is that if I looked at one of them properly, once, I would have to decide what I was, and there is no article of any code that assists a man with that.

34.

DAY 200 · 05:20

Number ninety-one. Sit down.

By Tir I was good at it. I want that in here because nobody ever says it.

I knew which bus. I knew that the second bus is better than the first because the first arrives before the gate opens and you stand in the wind. I knew the woman who sells the plastic bags and I knew not to buy the bags from her because the ones at the shop by the roundabout are half the price and the same bag. I knew that if the ticket says a number above eighty you will not be seen before noon and that there is a place round the side out of the sun.

I knew which officer will look properly at the food and which one will not, and I knew to arrive on the days when it is the one who will not, and that is a thing I worked out over four months by watching, and I have given it to eight other women since.

I could fill in the deposit slip without reading the boxes.

Nahid said to me at the end of Khordad: you have become one of the old ones.

That is what they call the women who know. It took me about seven months. There are women out there who have been doing it for nine years and are not old ones, because they never worked it out, and they still queue at the wrong hour and they still bring things that are taken out of the bag.

I am fifty-four and I never finished school and I have never in my life been the person in the room who knows how a thing works.

35.

BRANCH 26 · 22 KHORDAD 1402

No sitting. Files reviewed.

Ghaffari's wife made a soup on the Thursday and we sat on his balcony and had the argument again, and this time he took it further than he has ever taken it.

He said: Mahmud, what do you do when the code does not cover it?

I said, I look where I am told to look.

He said, and what do you find there?

I said, what is there.

And he put his glass down and said — and he is not a man who raises his voice, and he did not raise it — he said: *you find what you bring.*

I said that was not true and that it was, if he thought about it, an accusation not against me but against the arrangement itself, and that if he believed it he should not sit.

He said, I know. And then he said, that is why I stay inside the code. Not because it is better. Because inside the code I can be shown to be wrong.

We did not speak for about ten minutes and then we talked about his daughter.

I have thought about it every week since and I have an answer, and the answer is that a man who can only be corrected has not been trusted with anything. But I notice — and I am putting this down because this account is for nobody and there is no reason to leave it out — *I notice that I did not think of the answer on the balcony.* I thought of it in the car.

36.

BRANCH 26 · 14 TIR 1402

No sitting. Files reviewed.

My son is a lawyer and he is not on any register and he has not been to this house in four years.

Behnam does landlord and tenant, and contracts, and a certain amount of family work that he does badly and takes anyway, and he is good at what he does. He is forty. In 1398 he applied to be added to the register in this category and he was not added, and he did not ask me to do anything about it, and I did not do anything about

it, and that is the whole of what happened between us and it has never once been said out loud by either of us.

It was not open to me. I want to put the mechanism down rather than the phrase, because the phrase is too easy and I have used it too often.

The register is not maintained in this building. It is not maintained by any judge. A word from a judge of a branch, about his own son, into a process that does not sit under him, is not a small irregular kindness — *it is precisely the thing that, done a hundred times by a hundred men, produces a register that means nothing*. I have spent thirty-one years inside a thing that only works if the men in it do not do that.

So I did not.

He telephoned on the second Friday of every month for about a year afterwards and I answered every time and we talked about nothing, and then the Fridays stopped.

I have his number. I have had thirty-one years of afternoons in which a man might telephone his son. There has never been an occasion on which it was open to me, and I would not know how to describe the occasion that would be.

37.

DAY 300 • 22:00

—

I cannot remember him before.

I want to be careful about what I am saying because when I said it to my sister-in-law she thought I meant I could not picture his face, and I can picture his face; there are photographs and I look at them and that is not the trouble.

I cannot remember an *hour*. I cannot get back inside a single ordinary hour of the twenty-three years.

I know things. I know he was slow to talk and quick to walk, I know he broke his arm at nine, I know he could not stand the smell of

fish, I know he sang badly and knew it and did it anyway when he was pleased about something. Those are facts. They are on a list. They are the way you know a thing about a person you have read about.

What has gone is the other kind. A Thursday in some year with him at the table doing something with his hands and the television on. I had thousands of those and I cannot get into one of them.

What I have instead is corridors. I have three hundred days of corridors and windows and buses and numbers on tickets, and they have gone over the top of everything, the way you paint a wall and afterwards cannot remember what colour it was, although you lived with it for twenty years.

I would give the whole three hundred days back for one Thursday and I am aware that this is not a thing that can be offered to anybody.

38.

BRANCH 26 · 8 MEHR 1402

No sitting. Files reviewed.

So it holds, and I have set it out, and I will put the end of it here so that it is in one place.

Thirty-one years. Thirty-one men. A room in which the doubt is looked for by a man who knows where doubts live, in a building where nobody is required to look and nobody is rewarded for it and no one upstairs has ever remarked on it either way.

Against that: everything else I have signed.

I have known for a long time what a person outside would say, and it is this — that a man who saves thirty-one and signs the rest has not been merciful, he has been the reason the thing was tolerable. That the queue outside my door is not evidence of my decency but evidence of my function. *That a machine which sometimes lets a man go is a machine nobody ever has to stop.*

I have put that objection to myself in exactly those words, more than once, and here is my answer, and I have never found a hole in it.

The thirty-one are alive either way.

Whatever I am, whatever the queue outside the door is for, whatever purpose I have unknowingly served — those men are at tables tonight. That fact does not become less true because of what may also be true about the building. And a man who declines to look for a doubt on the grounds that finding one would prop up an arrangement he did not make has not resisted anything. He has only arranged for the next man to be the one who did not look.

It holds. I have taken it apart perhaps a hundred times, in this chair, in the evenings, and every time I put it back together it is the same shape.

It was still holding in Bahman when I emptied the room.

IV. THE ROOM

39.

BRANCH 26 · 8 BAHMAN 1402

Files transferred to the incoming branch. Nothing outstanding.

The room has to be empty by Thursday because a man is coming into it on the Sunday.

They gave me four cardboard boxes and Asghari found a fifth. Thirty-one years does not fill five boxes; it fills about two and a half, and the rest is air and old newspaper that has been under things.

What is in a judge's room at the end is this. A pen. A pair of reading glasses that are the wrong prescription and are kept for a visitor who has forgotten his. A copy of the code from 1375 with the pages soft at the corners, superseded twice, which I have kept because the marginalia are mine and I no longer agree with a good deal of them. A brass thing that a delegation gave the branch in 1381 and that nobody has ever been able to identify. Four glasses. A photograph of my wife which has been in the drawer, not on the desk, for four years, because a photograph on a desk is a thing a visitor looks at and remarks on.

And files that are not files. Notes. A folded page of arithmetic about a car I did not buy. A list of names in my own hand with no heading on it.

I have known this week was coming since Mordad. I have thought about it in the way one thinks about a thing that is administrative, which is to say I thought about the boxes.

I have not thought about the Sunday.

40.

DAY 420 · 06:10

Nothing today.

Nothing has happened for four hundred and twenty days and I want to try to write what that is like, because everybody thinks they know and they know the wrong thing.

They think it is waiting for a date. It is not. There is no date. There has never been a date. The judgment stands, and the review is finished, and what is left is enforcement, and enforcement is an office in another building that does not publish anything and does not tell anybody anything and is not obliged to.

So it is not a countdown. *It is a condition.*

Every morning I wake up and the first thing that arrives is: it did not happen in the night. And that is not relief, because relief is a thing with a shape and this has no shape; it is the same fact I woke up to yesterday, and it will be the same fact tomorrow, and it is the only fact.

Twice they have told me at the gate that there is no visit this week and given no reason. Both times I went home and did not sleep and both times the next week there was a visit and he was there and he was fine.

The second time, I said to him through the glass, they said no visit, and he said, yes, they do that.

He is calmer about all of it than I am. He has been calmer since about the fourth month. I do not know what that means and I have decided not to find out, because there are only two things it can mean and one of them I cannot carry.

41.

BRANCH 26 · 14 BAHMAN 1402

Seal and stamp handed to the clerk of the branch.

I gave the stamp to Asghari on the Wednesday.

It is a wooden handle with a brass collar and a rubber face and it has been in this room longer than I have. The handle is dark at one place on the left side, about the size of a thumbnail, where thirty-one years of one hand have taken the varnish off and gone into the wood, and the wood there is a different colour from the rest of it, and you can see the shape of a grip in it if you know to look.

He took it in both hands, which is more ceremony than either of us wanted, and he said, *khedmat-e shomā* [khed-MAT-e sho-MAA] — at your service — which is what he says, and he put it in the drawer where it goes.

Then he said the only unprofessional thing I have heard him say in thirty years.

He said: the new one will be quicker, *hāj āqā* [HAAJ aa-GHAA].

I said, that is not necessarily a bad thing.

He said, no. And he looked at me for a moment longer than a clerk looks at a judge, and then he went out and came back with the tea, and he poured mine first, which was correct until Thursday and would not be correct on Sunday, and I have thought about that ever since.

42.

DAY 425 · 08:40

Come to the office. Bring the shenāsnāmeḥ. Bring a bag.

They telephoned at twenty to nine and said come to the office and bring a bag.

I had known for four hundred and twenty-five days that there would be a telephone call one day. I had thought about it so many times that when it came I did not feel anything at all, which is a thing nobody tells you.

I said, is this — and I did not finish it, because there is no way to finish it.

The voice said, bring the *shenāsnāmeḥ* and bring a bag for the property.

I sat on the chair in the hall for I think four minutes. I could not stand up. Then I stood up and I put on the black which had been in the wardrobe since Azar of the year before, ironed, at the front, where I could reach it.

I telephoned nobody. I want that in here. I did not telephone my sister-in-law and I did not telephone Nahid and I have thought

about why, and the reason is that while nobody else knew it had not entirely happened.

The bus was the second bus. I sat where I sit. The woman who sells the plastic bags was at the corner and I did not buy one, because I had brought a bag, because they had said to bring a bag.

I have never told anybody what I thought about on that bus and I am not going to write it here either. It is the only thing in this whole account that is mine.

43.

DAY 425 · 11:55

This is the wrong number. Who telephoned you?

It was the wrong number.

A young man at the desk looked at the paper and then at the screen and then at the paper, and then he went and got somebody older, and the older one looked, and then he asked me who had telephoned me, and I said I did not know, and he asked what time, and I said twenty to nine, and he wrote that down on a corner of something.

He said: sister, there is a mistake. This is another file.

I said, another file.

He said, the number here is not your son's number. Somebody has read it wrong.

I said, so he is — and again I could not finish it, and the older man understood and said, no. No. He is in the section. Nothing has happened.

I said, then whose bag is this for.

He did not answer. I asked twice. I am not proud of asking twice.

They were sorry. I want that written down, because everybody assumes they were not. The older one was sorry in the way a decent man is sorry when a thing has been done in a place he is responsible for, and he brought me tea, and he sat me on a chair

away from the window, and after a while he said, you should go home, mother.

I was in that building for three hours and twenty minutes and at the end of it I went home with an empty bag on my knees on the second bus.

Nobody was cruel. Somebody misread a digit.

44.

BRANCH 26 · 15 BAHMAN 1402

I found it on the Thursday, in the bottom of the third box, in a bundle of loose material from 1384 that should have gone to the archive nineteen years ago.

It is one sheet, and it is a copy of a *dastur* in my own hand, and the file it belonged to is not in this building any more.

What it says is that a question was to be put to another office, and it sets out the question, and it directs that the matter stand over until the answer is received.

I knew the answer to the question. I want to be exact, because I have been exact about everything else. *I knew the answer to the question before I wrote it.* It was a question of the kind that has one answer, and everybody who does this work knows the answer, and I had had the answer myself in two other matters in the previous year.

The answer came back in nine months and it was the answer.

And in those nine months the family of the deceased gave their consent, and the man did not die, and the file went the other way, and I wrote *rezāyat recorded* on it, and I have never thought about it again from that day to the Thursday just gone.

He is not one of the thirty-one. I never counted him. It did not occur to me to count him, not once in nineteen years, because what happened in that matter was that a family consented, and consent

is not mine, and mercy in that category has never been mine and I have said so in this account already.

45.

DAY 426 • 05:00

—

I got up at five as usual and there was nothing to get up for.

I made the tea and I put the bag back in the cupboard, folded, because it is a good bag.

Mrs Aghdasi came at about nine because she had seen me come home in the black, and I told her, and she wept, and I made her tea, and I have noticed that this happens: I am always the one making the tea.

Here is the thing I have not been able to say to anyone.

For about three hours on the fifteenth day of Bahman, on a bus and in a corridor and on a chair with the older man being kind to me, *it was over*. Not the way I wanted it over. But there was a shape to the day. There was a bag to hold and a place to go and a thing that had happened, and I was a woman to whom a thing had happened, and people would know what to say to me.

And then it was not over, and I went home, and it went back to being the other thing.

I am ashamed of the three hours. I have not told anybody about the three hours. I am putting it here because if I do not put it here then this is a lie, and I have spent four hundred and twenty-six days in a building full of people telling me things that are not lies and are not true either, and I am not going to do it to my own son.

46.

BRANCH 26 · 16 BAHMAN 1402

—
It was open to me.

That is the whole of it, and I have had a day and a night with it, and I have not been able to get round it or under it, and I am not going to be able to.

I did not break anything. That is the part. If I had forged a document or lost a page or spoken to somebody in a corridor I would be a man who broke a rule, and I would know what to do with that; there is a whole apparatus for a man who breaks a rule, and it includes shame, which is at least a place to stand.

I asked a question. I was entitled to ask it. Nobody could have refused it and nobody did. And it cost nine months, and nine months was enough, and it was enough because in nine months a family sat in rooms and changed.

So the machine has a lever in it. It is not hidden. It is not illegal. It is not even irregular — I could write that same *dastur* tomorrow in front of the Head of the Judiciary and he would initial it and think nothing.

I found the lever in 1384. I put my hand on it once. And then for nineteen years I did not touch it again, and I did not decide not to touch it, which is the thing I keep coming back to. *There was never an afternoon on which I considered it and declined.* It went out of my head so completely that I did not count the man, and I have counted everything.

Because a man who uses that lever twice is a man who is choosing. And a man who is choosing has to choose every time, on every file, for thirty-one years, and there is no one alive who could do that and stay in the room.

So I built somebody who does not choose. It took about ten years and it worked, and it worked so well that when I did choose, once, in 1384, on a Sunday, with a pen I still have — I did not notice.

It was not open to me. I have said that sentence to my son, to Ghaffari, to my wife, to this account, and to myself in this chair every working day for thirty-one years.

I took a blank sheet just now and I wrote a *dastur* on it, at the top, in the usual form, and there is no file for it to go on.

I asked a question to which I knew the answer.

47.

DAY 431 · 06:10

Visit as usual.

On the four hundred and thirty-first day it was a visiting day and I went out on the second bus as usual and it was as usual.

He knew. Somebody inside had told him that they had called his mother in, and he had had a day and a half of it before somebody else told him it was a mistake, and he did not say any of that until we had four minutes left, and then he said it quickly, looking at the ledge and not at me.

He said, they told me you had been.

I said, it was a mistake with a number.

He said, I know. And then he said: do not come on your own if they call again.

That is the only instruction my son has given me in fourteen months and I have not decided whether I will keep it.

At the end, at twenty minutes, the woman on the door says the word she says, and everybody stands up at the same time, which is the part I have never got used to — that it ends for everybody at once, like a bell in a school.

He put his hand flat on the glass. He does not usually. I put mine where his was and it was warm from him, which is not possible through glass and which I felt.

48.

DAY 438 · 22:30

—
Nahid's husband came home in Bahman after four years and nine months, at the end of it, with no announcement and no explanation, on a Tuesday, in the clothes he went in.

I went to the house. There were about forty people there and there was too much food and he sat in the corner and did not say very much, and Nahid could not stop touching his shoulder as she went past, every single time, for the whole evening.

At about ten she came and sat next to me on the floor by the door and neither of us said anything for a while, and then she said: it will be your turn.

I said, God willing.

She said it again, and she meant it, and it is the kindest sentence anybody has said to me in fourteen months and it went through me like a piece of wire.

Because there is no *turn*. That is what I have learned and what I cannot say to her in her own house on the night her husband came back. There is no queue and no order and no rule about whose is next. His came because somebody in an office signed something, and mine has not come because nobody has, and there is nothing between those two facts. Not merit. Not patience. Not the folder in the hall cupboard.

I went home at midnight and I sat in the kitchen with my coat still on and I did the sum, which I do most nights: four hundred and thirty-eight days, which is ten thousand five hundred and twelve hours, and I have been awake for a good many of them.

49.

DAY 447

—

I do not say the number out loud any more.

I said it to my sister-in-law in Azar and I watched her face do something, and since then I have kept it in my head, where it goes on anyway, the way a tap goes on in a room you have shut the door of.

The judge who had his file has gone. I found that out at the window, not because I asked — I have never asked anything about a judge in that building — but because the man at the window said, that branch has a new one now, as a way of explaining why something would be slower. He said it the way you would say a shop had changed hands.

I did not feel anything about it. He is a man I have never seen. He went past me in a corridor once, on the twenty-second day, and did not look at me, and I have thought since that he probably went past me a hundred times.

I have the folder still. School certificate, two letters from teachers, the letter from the man he worked for in the good handwriting, nine signatures from the building, the hospital paper, his father's certificate, the photograph at Anzali. Nobody has ever read one page of it. I take it out about once a month and put it in order again although it is already in order.

Tomorrow is not a visiting day. Saturday is.

Four hundred and forty-eight.

GLOSSARY

Aban [aa-BAAN] — The eighth month, late October to late November.

Azar [aa-ZAR] — The ninth month, late November to late December.

Bahman [bah-MAN] — The eleventh month, late January to late February.

Dastur [das-TOOR] — Persian via Arabic, *instruction, order*. What a judge writes on a file to say what must happen next. Not the judgment: the thing that has to occur before a judgment becomes possible.

Dey [DAY] — The tenth month, late December to late January.

Ejrā [ej-RAA] — Persian via Arabic, *carrying out*. Enforcement of a judgment, and the carrying out of a sentence. One word for both, in a different office, in a different building.

Esfand [es-FAND] — The twelfth and last month, late February to late March.

Farvardin [far-var-DEEN] — The first month, beginning at the spring equinox.

Hāj āqā [HAAJ aa-GHAA] — Persian via Arabic, *pilgrim sir*. How a clerk addresses a senior man in that building. Respect, and a small distance held open inside it.

Khedmat-e shomā [khed-MAT-e sho-MAA] — Persian via Arabic, *at your service*. Said on handing something over. It costs nothing and it is never entirely empty.

Khordad [khor-DAAD] — The third month, late May to late June.

Mehr [MEHR] — The seventh month, late September to late October.

Mohlat [moh-LAT] — Persian via Arabic, *respite, grace, time given*.

In law, the period allowed to do a thing — to object to a judgment, to answer, to comply. In a kitchen, a few minutes more. The same word.

Molāqāt [mo-laa-GHAAT] — Persian via Arabic, *meeting, encounter*. A visit. Through glass, twenty minutes, on a day that is fixed by somebody else.

Mordad [mor-DAAD] — The fifth month, late July to late August; the hottest.

Ordibehesht [or-dee-be-HESHT] — The second month, late April to late May.

Parvandeḥ [par-van-DEH] — Persian, *file, case*. The case: everything there is about a matter, tied up in buff card. A person becomes one of these on the day they are taken, and from that morning it is the *parvandeḥ* that moves and not the person.

Qarār [gha-RAAR] — Persian via Arabic, *a settled thing, an arrangement*. In law, a ruling made on the way to a judgment rather than the judgment itself — including the one that holds a man while a matter is investigated. In ordinary speech it is an appointment, a thing agreed between people; and to be *bi-qarār* is to be unable to settle at all.

Rezāyat [re-zaa-YAT] — Persian via Arabic, *consent, satisfaction*.

The release, by the family of a person who has died, of the retribution the law gives them. A court cannot grant it and cannot withhold it. It is recorded in the file in one word.

Shenāsnāmeḥ [she-naas-NAA-meh] — Persian, *identity book*. The birth certificate, and the document that establishes who a person is. It is produced at every door, every time, however well the man at the door knows your face. The paper has standing. A face has none.

Tir [TEER] — The fourth month, late June to late July.

Vasigheh [vaa-see-GHEH] — Persian via Arabic, *surety, pledge*. A deed or a sum put up so that a man may wait for his matter outside rather than inside. Being asked for one is bad. Not being asked is worse.

Mahmud Bahrami has been a judge for thirty-one years. He reads every file twice. He is slower than the branch across the corridor and has been for twenty years, and he can name the men who are alive because of it.

Mahin Farahani is fifty-four and did not finish school. At ten past four on a morning in Azar, four men come for her son. They are not rough. They leave her a receipt for property that does not say where he has been taken, or by whom, or under what.

The law allows twenty days to object to a judgment. The advocate the register assigns lodges the appeal on the second day. It is timely. It is competently drafted. Nobody in this book has to be cruel; somebody has to be prompt.

In the week he clears his room, the judge finds one sheet of paper in the bottom of the third box.

The word for the time you are given is also the word for mercy.

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